

1 KOSTIANTYN MARS
2 6001 W Parmer Ln, Ste 370 448
3 Austin, TX 78727
4 Phone Number: 202.505.9444
5 Email: legal@marsjustice.io

6 April 20, 2026

7 Clerk of Court
8 United States District Court
9 Western District of Texas
10 Austin Division

11 **APPLICATION TO PROCEED IN FORMA PAUPERIS (FORM AO 239)**

12 **ACCOMPANYING: NOTICE OF REMOVAL, EMERGENCY MOTION FOR**
13 **TEMPORARY RESTRAINING ORDER,**
14 **AND MOTION TO DISMISS CRIMINAL CASE B2402220 WITH PREJUDICE**

15 Dear Clerk,

16 I respectfully submit my Application to Proceed In Forma Pauperis (Form AO 239) together
17 with the attached financial information. I am currently unemployed with no income. My 401(k)
18 retirement account is frozen and inaccessible due to actions taken by opposing counsel in the
19 removed state proceedings. I have been denied unemployment benefits, and was unable to get
20 new employment as a direct result of the fabricated criminal record which led to job offers
21 being rescinded. I have no significant assets or other sources of support.

22 I am unable to prepay the filing fee and respectfully request that the Court grant my application
23 to proceed without prepayment of fees.

24 Thank you for your consideration.

25 Respectfully submitted,

26 DATED: April 20, 2026

27 
28 KOSTIANTYN MARS
Pro Se

UNITED STATES DISTRICT COURT

for the

Western District of Texas, Austin 

Kostiantyn Mars

Plaintiff/Petitioner

v.

State of California et al.

Defendant/Respondent

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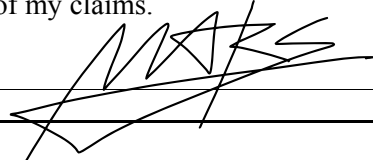
Civil Action No.

APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS (Long Form)

Affidavit in Support of the Application

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested. I declare under penalty of perjury that the information below is true and understand that a false statement may result in a dismissal of my claims.

Signed: _____



Instructions

Complete all questions in this application and then sign it. Do not leave any blanks: if the answer to a question is "0," "none," or "not applicable (N/A)," write that response. If you need more space to answer a question or to explain your answer, attach a separate sheet of paper identified with your name, your case's docket number, and the question number.

Date: 04/20/2026

- For both you and your spouse estimate the average amount of money received from each of the following sources during the past 12 months. Adjust any amount that was received weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate. Use gross amounts, that is, amounts before any deductions for taxes or otherwise.

Income source	Average monthly income amount during the past 12 months		Income amount expected next month	
	You	Spouse	You	Spouse
Employment	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Self-employment	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Income from real property <i>(such as rental income)</i>	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Interest and dividends	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Gifts	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Alimony	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Child support	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00

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Retirement (such as social security, pensions, annuities, insurance)	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Disability (such as social security, insurance payments)	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Unemployment payments	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Public-assistance (such as welfare)	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Other (specify):	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Total monthly income:	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00

2. List your employment history for the past two years, most recent employer first. (Gross monthly pay is before taxes or other deductions.)

Employer	Address	Dates of employment	Gross monthly pay
None	Currently unemployed due to		\$ 0.00
	fabricated criminal record (removed cas		\$ 0.00

3. List your spouse's employment history for the past two years, most recent employer first. (Gross monthly pay is before taxes or other deductions.)

Employer	Address	Dates of employment	Gross monthly pay
Not applicable	Separated		\$ 0.00
			\$ 0.00
			\$ 0.00

4. How much cash do you and your spouse have? \$ 0.00

Below, state any money you or your spouse have in bank accounts or in any other financial institution.

Financial institution	Type of account	Amount you have	Amount your spouse has
		\$ 0.00	\$ 0.00
		\$ 0.00	\$ 0.00
		\$ 0.00	\$ 0.00

If you are a prisoner, you must attach a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months in your institutional accounts. If you have multiple accounts, perhaps because you have been in multiple institutions, attach one certified statement of each account.

5. List the assets, and their values, which you own or your spouse owns. Do not list clothing and ordinary household furnishings.

Assets owned by you or your spouse	
Home (<i>Value</i>)	\$ 0.00
Other real estate (<i>Value</i>)	\$ 0.00
Motor vehicle #1 (<i>Value</i>)	\$ 0.00
Make and year:	
Model:	
Registration #:	
Motor vehicle #2 (<i>Value</i>)	\$ 0.00
Make and year:	
Model:	
Registration #:	
Other assets (<i>Value</i>)	\$ 0.00
Other assets (<i>Value</i>)	\$ 0.00

6. State every person, business, or organization owing you or your spouse money, and the amount owed.

Person owing you or your spouse money	Amount owed to you	Amount owed to your spouse
	\$ 0.00	\$ 0.00
	\$ 0.00	\$ 0.00
	\$ 0.00	\$ 0.00

7. State the persons who rely on you or your spouse for support.

Name (or, if under 18, initials only)	Relationship	Age
Maksym Mars	Minor son	10

8. Estimate the average monthly expenses of you and your family. Show separately the amounts paid by your spouse. Adjust any payments that are made weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate.

	You	Your spouse
Rent or home-mortgage payment <i>(including lot rented for mobile home)</i> Are real estate taxes included? ☐ Yes ☒ No Is property insurance included? ☐ Yes ☒ No	\$ 1,500.00	\$ 0.00
Utilities <i>(electricity, heating fuel, water, sewer, and telephone)</i>	\$ 100.00	\$ 0.00
Home maintenance <i>(repairs and upkeep)</i>	\$ 0.00	\$ 0.00
Food	\$ 300.00	\$ 0.00
Clothing	\$ 0.00	\$ 0.00
Laundry and dry-cleaning	\$ 0.00	\$ 0.00
Medical and dental expenses	\$ 0.00	\$ 0.00
Transportation <i>(not including motor vehicle payments)</i>	\$ 0.00	\$ 0.00
Recreation, entertainment, newspapers, magazines, etc.	\$ 0.00	\$ 0.00
Insurance <i>(not deducted from wages or included in mortgage payments)</i>		
Homeowner's or renter's:	\$ 0.00	\$ 0.00
Life:	\$ 0.00	\$ 0.00
Health:	\$ 0.00	\$ 0.00
Motor vehicle:	\$ 0.00	\$ 0.00
Other:	\$ 0.00	\$ 0.00
Taxes <i>(not deducted from wages or included in mortgage payments) (specify):</i>	\$ 0.00	\$ 0.00
Installment payments		
Motor vehicle:	\$ 0.00	\$ 0.00
Credit card <i>(name):</i>	\$ 0.00	\$ 0.00
Department store <i>(name):</i>	\$ 0.00	\$ 0.00
Other:	\$ 0.00	\$ 0.00
Alimony, maintenance, and support paid to others	\$ 0.00	\$ 0.00

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Regular expenses for operation of business, profession, or farm <i>(attach detailed statement)</i>	\$ 0.00	\$ 0.00
Other <i>(specify)</i> :	\$ 0.00	\$ 0.00
Total monthly expenses:	\$ 1,900.00	\$ 0.00

9. Do you expect any major changes to your monthly income or expenses or in your assets or liabilities during the next 12 months?

☒ Yes ☐ No If yes, describe on an attached sheet.

10. Have you spent — or will you be spending — any money for expenses or attorney fees in conjunction with this lawsuit? ☐ Yes ☒ No

If yes, how much? \$ _____

11. Provide any other information that will help explain why you cannot pay the costs of these proceedings. I am currently unemployed with zero income. My 401(k) retirement account is frozen and inaccessible due to actions taken by opposing counsel in the removed Santa Clara County proceedings. I have been denied unemployment benefits, and was unable to get new employment due to the fabricated criminal record. I have no significant assets or other sources of support. Supporting documents regarding termination of employment, frozen 401(k) account, and denial of unemployment benefits are attached as Exhibits 1- 4.

12. Identify the city and state of your legal residence.
Austin, Texas

Your daytime phone number: _____ (202) 505-9444

Your age: 39 Your years of schooling: 18

EXHIBITS TO APPLICATION TO PROCEED IN FORMA PAUPERIS (AO 239)

Redacted copies of the Notice of Termination of Employment and related documents are attached as Exhibits 1- 4. Unredacted versions are available upon request or for in camera review.

Exhibit 1 - Notice of Termination of Employment - Redacted

Exhibit 2 - Employer Notice - 401(k) Account Frozen / Blocked - Redacted

Exhibit 3 Letter from Opposing Counsel Requesting 401(k) Block

Exhibit 4 - Notice of Denial of Unemployment Benefits - Redacted

1 **EXHIBIT 1 TO AO 239 APPLICATION - REDACTED**
2 **NOTICE OF TERMINATION OF EMPLOYMENT**

3 (Sensitive personal information, internal contact details, and benefit plan information have
4 been redacted pursuant to Fed. R. Civ. P. 5.2)



6 May 29, 2025

7 Kostiantyn Mars
8 6001 W Parmer Ln Ste 370 448
9 Austin, TX 78727

10 ***RE: Benefits at Exit***

11 Dear Kostiantyn,

12 This letter confirms that your last day of employment with EPAM Systems, Inc., will be on **May 29, 2025**.

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26 **EPAM.COM** | 41 University Drive, Suite 202, Newtown, PA 18940 |
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1 **EXHIBIT 2 TO AO 239 APPLICATION - REDACTED**
2 **EMPLOYER NOTICE - 401(K) ACCOUNT FROZEN / BLOCKED**

3 (Sensitive personal information, internal contact details, and benefit plan information have
4 been redacted pursuant to Fed. R. Civ. P. 5.2)



Seyfarth Shaw LLP

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9 August 26, 2025

10 Kostiantyn Mars
11 6001 West Parmer Lane
12 Suite 370 448
13 Austin, TX 78727

14 **Re: Benefit under the EPAM Systems, Inc. 401(k) Plan**

15 Dear Mr. Mars:

16 My name is Adam Greetis, I am an attorney at Seyfarth Shaw LLP, and we represent EPAM
17 Systems, Inc. ("EPAM"). We are advising them with respect to your benefit under the EPAM
18 Systems, Inc. 401(k) Plan (the "Plan"). We understand you are requesting that EPAM remove
19 the hold that is currently in place on your Plan account. EPAM cannot grant your request.

20 The Plan is governed by the Employee Retirement Income Security Act of 1974, as amended
21 ("ERISA"). ERISA gives your wife certain rights with respect to your benefit under the Plan,
22 including the right to a portion of your Plan benefit if a judge determines that she is entitled to a
23 portion of your Plan benefit. As that process unfolds, ERISA requires EPAM to place a hold on
24 your Plan benefit to protect your wife's rights. It is our understanding that your wife is currently
25 working with her attorneys and the court to obtain a right to your Plan benefit. Consequently,
26 the hold will remain in place unless and until the court decides otherwise.

27 Please stop contacting EPAM regarding this matter. If you have further questions regarding this
28 matter, you may direct your correspondence to my attention.

Very truly yours,

SEYFARTH SHAW LLP

29 

Adam J. Greetis

AJG:cb

319950717v.1

EXHIBIT 3 TO AO 239 APPLICATION - REDACTED
LETTER FROM OPPOSING COUNSEL REQUESTING 401(K) BLOCK

(Sensitive personal information, internal contact details, and benefit plan information have been redacted pursuant to Fed. R. Civ. P. 5.2)

Nancy L Roberts
Attorney at Law

July 2, 2024

EPAM Systems, Inc. 401(k) Plan
Attention: Administrator

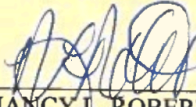
Re: Employee: Kostiantyn/Constantine Mars

Dear Administrator:

Notice is hereby given to you as Administrator of the EPAM Systems, Inc. 401(k) Plan that HANNA MARS claims a fifty percent (50%) interest in said Plan. Such interest is based on HANNA MARS' community property interest arising out of her marriage to KOSTIANTYN MARS. Such interest is claimed as to one-half of all assets as of September 15, 2022, together with earnings, interest and/or appreciation of those assets from September 15, 2022 to the date of distribution.

This notice is given pursuant to California Family Code Section 755 and other provisions of general law.

Dated: July 2, 2024


NANCY L. ROBERTS
Attorney for Hanna Mars

1 **EXHIBIT 4 TO AO 239 APPLICATION - REDACTED**
2 **NOTICE OF DENIAL OF UNEMPLOYMENT BENEFITS**

3 (Sensitive personal information, internal contact details, and benefit plan information have
4 been redacted pursuant to Fed. R. Civ. P. 5.2)

5 (Since May 2025 to September 2025 California EDD never issued any benefits, kept
6 application in status “under review”, and since September 2025 they continued blocking the
7 case in the same status without any review and resolution)

8 Date: 08/29/2025



10 Hi KOSTIANT,

11 There is an issue with your unemployment claim that may impact your eligibility.

12 You must [create an Eligibility Questionnaire account](#) and answer questions about your potential eligibility issue online by **September 01, 2025**.

13 If you already have an account, [log in](#).

14 If you do not respond, we will mail a *Request for Eligibility Information* (DE 4365FF) or schedule a phone interview, which will delay your benefits or eligibility
15 decision.

16 Thank you,
17 Employment Development Department
18 State of California